



MIP-0002: Constitutional Council Formation

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Title: Constitutional Council Formation

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Category: Process

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Abstract

This MIP establishes the Constitutional Council, the primary governance body of the LambdaProof DAO responsible for stewarding the Constitutional Core, interpreting the Lambda-Constitution, overseeing the MIP process, and protecting the immutable provisions that ensure LambdaProof remains an open, lawful, and non-exploitative digital substrate. The Council acts as the "Supreme Court" of proof-lawful systems—custodians of MTPI invariants, CSL ethics, the Silence Clause, and prime-lawful core policies.^{[1][2]}

Motivation

The LambdaProof ecosystem requires a governance body that:

1. **Preserves Foundational Principles:** The Λ -Constitution establishes certain provisions as immutable. A dedicated body must enforce these constraints and prevent erosion through majoritarian pressure.^[1]
 2. **Enables Protocol Evolution:** Mathematics, technology, and threats evolve. The Council provides a deliberative mechanism for adapting the protocol without compromising its foundational guarantees.^[1]
 3. **Prevents Enclosure:** The Constitutional Core must remain public domain. The Council ensures no party—including the DAO itself—can enclose the foundational mathematics.^[3]
 4. **Upholds Ethical Invariants:** The CSL operators (Neutrality, Beneficence, Silence) require authoritative interpretation for edge cases.^[4]
 5. **Provides Due Process:** Any governance system requires an appeals mechanism and a final arbiter for disputes.^[5]
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Specification

Section 1: Council Composition

The Constitutional Council consists of **7–13 members** distributed across five categories:^[1]

Category	Seats	Selection Method	Term
Founding Stewards	3	Designated at ratification	Perpetual (advisory after Year 3)
Technical Architects	2	Elected by MIP contributors	2 years, staggered
Ecosystem Representatives	2	Elected by certified builders	2 years, staggered
Ethics Guardians	2	Appointed by Council supermajority	2 years
At-Large Members	0–4	Elected by token holders	2 years, staggered

Initial Council Size: 9 members (3 Founding Stewards + 2 Technical Architects + 2 Ecosystem Representatives + 2 Ethics Guardians)

Maximum Council Size: 13 members (adding up to 4 At-Large Members as ecosystem grows)

Section 2: Council Powers and Thresholds

Power	Threshold	Scope
Approve MIPs (minor)	Simple majority	Bug fixes, clarifications, documentation
Approve MIPs (major)	Supermajority (2/3)	New features, breaking changes
Amend Charter	Supermajority + 90-day notice	Non-constitutional provisions only
Emergency Actions	Unanimous	Security vulnerabilities only
Appoint Ethics Guardians	Supermajority	2-year terms
Veto Patent Pledge Changes	Any single member	Absolute veto
Interpret A-Constitution	Simple majority	Binding interpretations
Certify Working Group Charters	Simple majority	WG establishment/dissolution

Section 3: Ethics Guardian Special Authority

Ethics Guardians hold unique veto authority to protect constitutional principles against majoritarian erosion:^[1]

Ethics Guardian Powers:

- May raise an **ETHICS OBJECTION** during Review or Voting phases of any MIP
- Objection immediately **SUSPENDS** voting
- Requires written explanation of ethical concern
- Triggers **30-day mediation period**

- Author may: (a) modify proposal, (b) request Council override (requires unanimous Council vote), or (c) withdraw proposal

Grounds for Ethics Objection:

- Proposal introduces surveillance requirements
- Proposal weakens CSL operator guarantees
- Proposal creates mechanisms for enclosure
- Proposal violates Silence Clause principles
- Proposal reduces rights of existing participants

Cannot Be Overruled: Ethics Guardians cannot be overruled on matters affecting CSL operator definitions or Silence Clause enforcement.^[1]

Section 4: Council Procedures

4.1 Quorum Requirements

Decision Type	Required Quorum
Standard decisions	5 members
MIP-Core votes	7 members
Constitutional interpretations	7 members
Emergency actions	All members

4.2 Meeting Cadence

- **Weekly:** Working Group updates, urgent matters
- **Monthly:** MIP reviews, policy discussions
- **Quarterly:** Strategic planning, ecosystem assessment
- **Annual:** Council elections, comprehensive review

4.3 Voting Procedures

1. **Notice Period:** 7 days minimum for standard matters; 14 days for MIP-Core
2. **Voting Window:** 7 days
3. **Vote Options:** FOR, AGAINST, ABSTAIN
4. **Abstentions:** Count toward quorum but not threshold calculation
5. **Tie-Breaking:** Chair casts deciding vote; if Chair abstains, motion fails

4.4 Conflict of Interest

- Members must recuse from votes involving their employers or direct financial interests
 - Disclosed affiliations required within 30 days of appointment
 - Undisclosed conflicts discovered post-facto may result in removal^[1]
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Section 5: Council Member Eligibility

5.1 Technical Architect Requirements

- Authored or co-authored at least 1 merged MIP-Core or MIP-Protocol
- Demonstrated expertise in MTPI mathematics, ZK systems, or protocol security
- No current employment by competing protocol

5.2 Ecosystem Representative Requirements

- Organization holds Λ Proof-Verified (Tier 2) or higher certification^[1]
- At least 12 months of active ecosystem participation
- No patent assertions against Constitutional Core

5.3 Ethics Guardian Requirements

- Demonstrated expertise in technology ethics, philosophy, or constitutional law
- No commercial interest in Λ Proof implementations
- Commitment to serve as neutral arbiter

5.4 At-Large Member Requirements

- Holds governance tokens (minimum threshold TBD by Council)
 - 6+ months of ecosystem participation
 - Not currently serving in another Council category
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Section 6: Council Prohibited Actions

The Council **MAY NOT**:^[1]

1. Amend immutable provisions of the Λ-Constitution
 2. Waive CSL requirements for any implementation
 3. Grant exceptions to the Non-Enclosure Covenant
 4. Override Silence Clause triggers
 5. Approve MIPs that introduce surveillance requirements
 6. Transfer governance authority to non-accountable entities
 7. Assert patents against Constitutional Core implementations
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Section 7: Election Procedures

7.1 Technical Architect Elections

Electorate: All individuals who have authored or substantially contributed to a merged MIP

Nomination Period: 30 days

Voting Method: Ranked-choice voting

Timing: Annually, staggered (1 seat per year)

7.2 Ecosystem Representative Elections

Electorate: Authorized representatives of Tier 2+ certified organizations

Nomination Period: 30 days

Voting Method: One organization, one vote; ranked-choice

Timing: Annually, staggered (1 seat per year)

7.3 At-Large Member Elections

Electorate: Token holders (weighted by formula to prevent plutocratic capture)¹¹

Nomination Period: 30 days

Voting Method: Quadratic voting or equivalent anti-plutocracy mechanism

Timing: As seats are added (Council decision)

7.4 Ethics Guardian Appointments

Nomination: Any Council member may nominate

Vetting: 60-day public comment period

Approval: Supermajority ($\frac{2}{3}$) Council vote

Term: 2 years, renewable once

Section 8: Removal and Succession

8.1 Grounds for Removal

- Material breach of fiduciary duty
- Undisclosed conflict of interest
- Patent assertion against Constitutional Core
- Conviction of fraud or dishonesty
- Incapacity to serve
- Failure to participate (3+ consecutive missed votes without excuse)

8.2 Removal Process

1. Any Council member may file a Removal Motion
2. Member subject to removal may respond (14 days)
3. Council vote (supermajority required, subject member abstains)
4. Removed members may appeal to Ethics Guardians within 30 days
5. Ethics Guardian ruling is final

8.3 Vacancy Filling

- **Founding Steward:** Seat remains vacant; advisory capacity only
 - **Technical Architect/Ecosystem Rep:** Special election within 60 days
 - **Ethics Guardian:** Council appointment within 90 days
 - **At-Large:** Seat remains vacant until next scheduled election
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Section 9: Transition from Founding Period

9.1 Initial Council Formation (Year 1)

1. **Day 1:** Founding Stewards assume office
2. **Day 30:** Founding Stewards appoint interim Technical Architects
3. **Day 60:** Founding Stewards appoint interim Ecosystem Representatives
4. **Day 90:** Council achieves quorum; appoints Ethics Guardians
5. **Day 180:** First elections for Technical Architects and Ecosystem Representatives

9.2 Founding Steward Transition (Year 3+)

- Founding Stewards transition to **advisory (non-voting)** status
 - May participate in discussions but not in formal votes
 - Advisory status is permanent and cannot be revoked
 - Seats do not transfer or convert to other categories
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Section 10: Compensation and Resources

10.1 Council Member Compensation

Role	Annual Compensation
Council Chair	\$50,000 equivalent (in AProof tokens or stablecoins)

Ethics Guardian	\$40,000 equivalent
Other Council Members	\$30,000 equivalent

Compensation subject to annual review by Council vote (simple majority).

10.2 Operational Resources

- Dedicated communication channels (secure, auditable)
- Legal counsel access for constitutional interpretations
- Administrative support for meeting coordination
- Travel budget for in-person gatherings (annual maximum TBD)

Rationale

Why This Structure?

Founding Stewards with Perpetual Advisory Status: Initial stewards provide continuity and institutional memory while transitioning power to elected members. Advisory status after Year 3 prevents entrenchment while preserving expertise.^[1]

Ethics Guardians with Veto Power: Protects against scenarios where a majority might approve changes violating constitutional principles—a structural safeguard against tyranny of the majority.^[1]

Weighted Voting for At-Large Members: Token-weighted voting was rejected because it could enable plutocratic capture. The DAO Charter's weighted voting formula caps influence to prevent concentration.^[1]

Staggered Terms: Ensures institutional continuity while allowing fresh perspectives.

Alternative Approaches Considered

Alternative	Reason Rejected
Unanimous Council approval for MIP-Core	Creates permanent gridlock ^[1]

No Ethics Guardian veto	Insufficient protection for constitutional principles
Founding Stewards with permanent voting rights	Risks entrenchment, reduces accountability
Pure token-weighted voting	Enables plutocratic capture ^[1]

Backwards Compatibility

This MIP establishes new governance structures. No backwards compatibility concerns exist as this is the foundational governance MIP.

Security Considerations

Risk	Mitigation
Council capture by hostile actors	Supermajority thresholds, Ethics Guardian veto, conflict disclosure requirements
Social engineering	Notice periods (14–90 days) allow community review ^[1]
Constitutional erosion	Immutable provisions cannot be amended by any process ^[1]
Rushed decisions	Mandatory notice periods, deliberation requirements
Founding Steward entrenchment	Automatic transition to advisory status after Year 3

CSL Compliance

This MIP complies with CSL operators:^[4]

- **Neutrality:** All community members may participate in elections; voting rules apply uniformly
- **Beneficence:** Governance designed to benefit ecosystem; no extraction mechanisms
- **Silence:** When process is uncertain, default is to not proceed; Council cannot override Silence Clause

- **Commutation:** Process rules apply consistently regardless of order or timing
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Reference Implementation

Council Smart Contract Interface

```
interface IConstitutionalCouncil {
    enum Role { FoundingSteward, TechnicalArchitect, EcosystemRep, EthicsGuardian,
    AtLarge }

    enum VoteType { For, Against, Abstain }

    function proposeAction(bytes32 actionHash, uint256 noticeEndTime) external;
    function castVote(bytes32 actionHash, VoteType vote) external;
    function executeAction(bytes32 actionHash) external;
    function raiseEthicsObjection(bytes32 actionHash, string calldata reason) external;
    function resolveEthicsObjection(bytes32 actionHash, bool upheld) external;

    event ActionProposed(bytes32 indexed actionHash, address proposer, uint256
noticeEnd);
    event VoteCast(bytes32 indexed actionHash, address member, VoteType vote);
    event EthicsObjectionRaised(bytes32 indexed actionHash, address guardian, string
reason);
    event ActionExecuted(bytes32 indexed actionHash);
    event ActionRejected(bytes32 indexed actionHash, string reason);
}
```

Copyright

This MIP is dedicated to the public domain under CC0 1.0 Universal.^[1]

END OF MIP-0002

This document establishes the Constitutional Council as the primary governance body for the AProof ecosystem, ensuring that protocol evolution proceeds through structured deliberation

while protecting immutable constitutional principles.^{[5][1]}

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1. [lets-produce-a-list-of-documen-MocV13l6RI.gUHQs0MYElw.md](#)
 2. LProof-IP-Strategic-Blueprint.pdf
 3. lets-discuss-licensing-open-so-HV_bbj5uQlOPuXCF7b61YQ.md
 4. Conscious-Sovereignty-Layer-CSL-Solver.pdf
 5. Governance-for-a-Non-Surveillance-Digital-Ecosystem.pdf
 6. How Trust is Measured.pdf
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 9. Audit Logs_ Event Schema & Sanitized Examples.pdf
 10. ΛProof Intent Schema Specification.pdf
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 12. DAO Charter.pdf
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 15. Data Sovereignty Informational Personhood.pdf
 16. ΛProof_ An Architectural Blueprint for Verifiable Artificial Intelligence.pdf
 17. Λ^P-Archivum.pdf
 18. Token Specification.pdf
 19. Risk Classification.pdf
 20. Policy Rules Specification.pdf

21. Evidence Validation.pdf